

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

BRIAN GORKY-QUARSHIE,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
THOMASZ KONARZEWSKI, Tax No. 952944,
SERGEANT JOSE CANCELINO, Tax No. 937607,
POLICE OFFICER DANIEL DAVIDSON, Shield No.
00456; SERGEANT LUIS VILLAGRAN, POLICE
OFFICER MICHAEL FORESTER, SERGEANT DANIEL
MCNEIL, Tax No. 922765, and POLICE OFFICERS
JOHN DOES # 1-4 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 20, 2016

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER THOMASZ KONARZEWSKI, Tax No. 952944
SERGEANT JOSE CANCELINO, Tax No. 937607
POLICE OFFICER DANIEL DAVIDSON, Shield No. 00456
SERGEANT LUIS VILLAGRAN
POLICE OFFICER MICHAEL FORESTER
SERGEANT DANEIL MCNEIL, Tax No. 922765

SUPREME COURT OF THE STATE OF NEW YORK
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Plaintiff,

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THE CITY OF NEW YORK, POLICE OFFICER
THOMASZ KONARZEWSKI, Tax No. 952944,
SERGEANT JOSE CANCELINO, Tax No. 937607,
POLICE OFFICER DANIEL DAVIDSON, Shield No.
00456; SERGEANT LUIS VILLAGRAN, POLICE
OFFICER MICHAEL FORESTER, SERGEANT DANIEL
MCNEIL, Tax No. 922765, and POLICE OFFICERS
JOHN DOES # 1-4 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff BRIAN GORKY-QUARSHIE, by his attorneys, Jacobs & Hazan, LLP, as and
for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections
1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the
United States Constitution, and the common law and the laws of the State of New York. On
May 21, 2013, at approximately 1:00 p.m., plaintiff Brian Gorky-Quarshie, while lawfully
present inside of the of the Jay Street Subway Station, Brooklyn, New York, was subject to an
unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New
York City police officers. Additionally, plaintiff was subjected to the use of excessive force by
the defendant police officers when they grabbed plaintiff, pushed him to the ground, and put a
knee into his back causing him to suffer serious physical injuries. Thereafter, plaintiff was
maliciously prosecuted and denied the right to a fair trial in New York County Criminal Court
until all criminal charges brought against plaintiff were dismissed on or about November 18,
2014. Plaintiff was deprived of his constitutional when the individual defendants unlawfully
stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, denied
plaintiff the right to due process and used excessive force against plaintiff in violation of the

Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff BRIAN GORKY-QUARSHIE is a resident of the state of New York.

3. POLICE OFFICER THOMASZ KONARZEWSKI, Tax No. 952944, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER THOMASZ KONARZEWSKI, Tax No. 952944, is and was at all times relevant herein, assigned to Transit District 30.

5. POLICE OFFICER THOMASZ KONARZEWSKI, Tax No. 952944, is being sued in his individual and official capacity.

6. SERGEANT JOSE CANCELINO, Tax No. 937607, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT JOSE CANCELINO, Tax No. 937607, is and was at all times relevant herein, assigned to Transit District 30.

8. SERGEANT JOSE CANCELINO, Tax No. 937607, is being sued in his individual and official capacity.

9. POLICE OFFICER DANIEL DAVIDSON, Shield No. 00456, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER DANIEL DAVIDSON, Shield No. 00456, is and was at all times relevant herein, assigned to Transit District 30.

11. POLICE OFFICER DANIEL DAVIDSON, Shield No. 00456, is being sued in his individual and official capacity.

12. SERGEANT LUIS VILLAGRAN, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. SERGEANT LUIS VILLAGRAN, is and was at all times relevant herein, assigned to Transit District 30.

14. SERGEANT LUIS VILLAGRAN, is being sued in his individual and official capacity.

15. POLICE OFFICER MICHAEL FORESTER, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. POLICE OFFICER MICHAEL FORESTER, is and was at all times relevant herein, assigned to Transit District 30.

17. POLICE OFFICER MICHAEL FORESTER, is being sued in his individual and official capacity.

18. SERGEANT DANEIL MCNEIL, Tax No. 922765, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. SERGEANT DANEIL MCNEIL, Tax No. 922765, is and was at all times relevant herein, assigned to Transit District 30.

20. SERGEANT DANEIL MCNEIL, Tax No. 922765, is being sued in his individual and official capacity.

21. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Police Officers John Does #1-4 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

24. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

27. On May 21, 2013, at approximately 1:00 p.m. plaintiff was unlawfully stopped, questioned, frisked, searched, seized, handcuffed, subjected to excessive force, subjected to civil rights violations, falsely arrested and falsely imprisoned, maliciously prosecuted, and denied the Fifth Amendment Right to Due Process, without reasonable suspicion, probable cause or legal justification, by the individually named police officer defendants.

28. Specifically, on May 21, 2013, at approximately 1:00 p.m., plaintiff was lawfully inside of the Jay Street Subway Station, Brooklyn, New York when the individually named defendant police officers unlawfully approached, stopped, questioned, frisked, and search plaintiff.

29. At no point in time had plaintiff committed a crime, nor could any reasonable police officer believe he committed a crime.

30. Plaintiff asked the officers what crime they believed he committed, as he had not committed any crime, nor did he have an objective reason to believe he committed a crime.

31. Without provocation or legal justification, the defendant police officers grabbed plaintiff, threw him down the ground, and put a knee in his back causing him to suffer serious physical injuries.

32. At no point in time did plaintiff resist arrest in any way.

33. The defendant officers then proceeded to unlawfully handcuff plaintiff.

34. Plaintiff was falsely arrested and imprisoned by the defendant police officers.

35. Plaintiff was transported by the defendant police officers to the Transit District 30 precinct, against his will, where an unlawful search was conducted of plaintiff's person.

36. Plaintiff asked for medical attention because he was in pain from the excessively rough manner in which the officers treated him.

37. EMS responded to the Transit District 30 precinct and determined that plaintiff's injuries required treatment at a hospital.

38. Plaintiff was transported by EMS to SUNY Downstate Medical Center at LICH.

39. Plaintiff was treated for several injuries at the hospital, including but not limited to contusions and pain to his right shoulder, head trauma, headache, and wrist pain.

40. After plaintiff was treated at the hospital he was transported to the 84th Precinct where he was detained in a holding cell for several hours.

41. Thereafter, he was transported to Central Booking whereat plaintiff was unlawfully detained until approximately 1:00 p.m. on May 22, 2013, at which time plaintiff was arraigned in New York County Criminal Court and bail was set in the amount of \$2,000.

42. Plaintiff was unable to post bail and was therefore remanded to the custody of the Department of Correction and transported to Riker's Island.

43. After spending approximately 2 days on Riker's Island, on or about May 24, 2013, plaintiff was able to post bail and was released.

44. The police officers maliciously initiated the prosecution against plaintiff by providing the DA's Office with false, misleading, and incomplete information regarding the facts that formed the officers' basis for arresting plaintiff.

45. After the New York City Police Officers falsely arrested plaintiff, on May 21, 2013, they charged plaintiff with crimes they had no basis to allege he committed and maliciously prosecuted him.

46. The criminal prosecution of plaintiff was maliciously initiated without probable cause by New York City Police Officers, on May 21, 2013, when the police officers forwarded false, misleading, and/or incomplete information and/or evidence to the Kings County District Attorney's Office as an explanation for why they allegedly had probable cause to arrest and prosecute plaintiff.

47. At no time did the police officers have any legal justification or probable cause to believe plaintiff had committed any crime.

48. Nevertheless, plaintiff was handcuffed and falsely placed under arrest.

49. Further, the NYPD officers signed and executed a criminal court complaint that contained false, misleading and incomplete information and/or evidence under oath and under the risk of a penalty of perjury.

50. Thereafter the prosecution was maliciously continued by said police officers without probable cause until all charges were dismissed on or about November 18, 2014, when the criminal prosecution against plaintiff terminated in his favor.

51. As a result of the malicious prosecution against plaintiff, plaintiff experienced physical, personal, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, and humiliation.

52. Additionally, as a result of the malicious prosecution against plaintiff, plaintiff was forced make numerous Court appearances before the false charges against him were dismissed on November 18, 2014.

53. At no time did the officers have probable cause or any legal justification to allege plaintiff committed a crime, nor did they possess any objective facts to indicate plaintiff committed a crime.

54. Some of the individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, denial of a fair trial, and use of excessive force against plaintiff.

55. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, denial of the right to due process, use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain serious physical, psychological and emotional trauma, including post-traumatic stress disorder.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

64. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

67. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

74. Defendants lacked probable cause to search plaintiff.

75. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

81. Defendants commenced and continued a criminal proceeding against plaintiff.

82. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

83. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

84. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

87. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

88. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. The use of excessive force by defendants in violently grabbing plaintiff, throwing him down the ground, and putting their knees in his back is an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

90. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

91. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial

92. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein

93. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

94. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

95. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

96. In withholding/creating false evidence against plaintiff Brian Gorky-Quarshie, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

97. As a result of the foregoing, plaintiff Brian Gorky-Quarshie, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

98. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

99. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

100. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

101. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 100 with the same force and effect as if more fully set forth at length herein.

102. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

103. Defendants failed to intervene to prevent the unlawful conduct described herein.

104. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

105. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

107. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

108. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

109. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length herein.

110. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

111. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, subjecting individuals to excessive force without provocation or legal justification, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to these issues.

112. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit,

screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

113. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

114. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

115. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

116. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

117. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Brian Gorky-Quarshie demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 20, 2016

By: _____ /s/

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 20, 2016

/s/
STUART E. JACOBS